

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Session and Chapter.	Short Title.	Extent of Repeal.
4 & 5 Will. 4. c. 76.	The Poor Law Amendment Act, 1834.	Section thirty-two, from the words "provided always," where they first occur, to "entitled thereto, as the case may be."
7 & 8 Vict. c. 101.	The Poor Law Amendment Act, 1844.	Section forty-six, from "and in case of any addition" to the end of the section.
31 & 32 Vict. c. 122.	The Poor Law Amendment Act, 1868.	Section twelve.
32 & 33 Vict. c. 63.	The Metropolitan Poor Amendment Act, 1869.	The words "adjust the rights and liabilities of parishes and unions comprised therein, respectively, " and " in section one, and section four, from "and they shall" to the end of the section.
33 & 34 Vict. c. 2.	The Dissolved Boards of Management and Guardians Act, 1870.	Section four. Section seven, so far as it empowers the Local Government Board by order to direct the payment of any instalment of or interest on any loan, as therein mentioned. Section eleven.
39 & 40 Vict. c. 61.	The Divided Parishes and Poor Law Amendment Act, 1876.	Section eight, from the beginning of the section to "order; and "
45 & 46 Vict. c. 58.	The Divided Parishes and Poor Law Amendment Act, 1882.	Sections nine, ten, and eleven.

CHAPTER 20.

An Act to reorganise the Administration of the Patriotic Fund.
[11th August 1903.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:

1.—(1) There shall be established a Royal Patriotic Fund Corporation, which shall be a body corporate by that name, with

Incorporation
of Royal
Patriotic Fund.

perpetual succession and a common seal and power to acquire and hold lands without licence in mortmain.

(2) The constitution, rights, powers and duties of the Corporation shall be determined in accordance with the First Schedule to this Act.

Objects of Corporation.

2. The property of the Corporation shall, subject to any special trust relating to any part thereof, be administered by the Corporation for the benefit of the widows, children and dependents of officers and men of the naval and military forces of the Crown.

Transfer of administration of Patriotic Fund to Corporation.

3.—(1) The Patriotic Fund Commission is hereby dissolved, and the property, rights, duties and liabilities thereof, and all property held in trust therefor, are hereby transferred to and vested in the Royal Patriotic Fund Corporation.

(2) The officers and clerks in the service of the Patriotic Fund Commission shall be transferred and attached to the Royal Patriotic Fund Corporation: Provided that such persons shall not by reason of the transfer be in any worse position legally in respect of their salaries, tenure of office or superannuation allowances than they would have been if this Act had not passed.

(3) References in any deed, will or other instrument to the Patriotic Fund Commission shall, unless a contrary intention appears, be construed as references to the Royal Patriotic Fund Corporation.

Repeal.

4. The enactments mentioned in the Second Schedule to this Act are hereby repealed to the extent specified in the third column of that schedule.

Short title and commencement.

5.—(1) This Act may be cited as the Patriotic Fund Reorganisation Act, 1903.

(2) It shall come into operation on the first day of January nineteen hundred and four.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

CONSTITUTION OF CORPORATION.

Constitution of Corporation.

1. The Corporation shall consist of the following persons, namely:—

(a) Twelve members nominated by His Majesty by warrant under the sign manual, who shall be appointed for a term of three years, but shall be eligible for re-appointment, and who are referred to as "appointed members."

(b) The lord lieutenants of counties.

(c) The chairman for the time being of every council of a county: Provided that a county council may, if the chairman is unable or unwilling to act, appoint some other person in place of the chairman to be a member of the Corporation, and any person so appointed shall hold office for one year from the time of his appointment.

- (d) Every person for the time being entitled to the style of Lord Mayor and the mayor for the time being of every county borough in England, Wales and Ireland.
- (e) Every person for the time being entitled to the style of Lord Provost and the provost for the time being of every royal, Parliamentary or police burgh in Scotland with a population of or exceeding 50,000 according to the census for the time being last taken : provided that any question as to the persons entitled to the style of Lord Provost may be decided by the Secretary for Scotland, and his decision shall be final.
- (f) Any number of persons not exceeding seven whom the council of the Corporation may think fit to co-opt as members, each of whom shall have been nominated as the representative of a charitable fund founded for the like purposes as the Corporation.

2. If during the three years immediately succeeding the commencement of this Act any vacancy occurs by death, resignation or otherwise among the appointed members, His Majesty may appoint some person to supply the vacancy, and that person shall hold office until the expiration of the three years. Filling vacancies.

After the expiration of the three years the appointed members shall be selected as follows ; namely, six members shall be appointed by His Majesty by warrant under the sign manual, and the remaining six members shall be co-opted by the general council, and the members so appointed or co-opted shall hold office for a term of three years, but shall be eligible for re-appointment or co-optation by His Majesty or by the council.

Where any vacancy occurs by death, resignation, effluxion of time or otherwise in the office of any member so appointed or co-opted, the vacancy shall be filled by appointment by His Majesty or by co-optation, as the case may be. Any member so appointed or co-opted shall hold office for three years, and shall be eligible for re-appointment or co-option.

3. The powers and duties of the Corporation shall be exercised and performed by the general council of the Corporation, consisting of the whole of the members, and by an executive committee appointed from among the members. General council.

4. The general council shall meet once at least in every year, and shall also meet when required to meet by a requisition in writing signed by not less than ten members of the Corporation, and seven members shall constitute a quorum of the general council. Meetings of council.

5.—(a) One of the members of the Corporation appointed by the Crown shall be nominated by the Crown as president of the council. President and vice-president.

(b) The chairman of the executive committee shall be elected by the committee and shall be the vice-president of the council.

6. The executive committee shall consist of not less than twelve nor more than twenty members of the Corporation, of whom three shall constitute a quorum. Four members in the first instance, and thereafter one member of the committee, shall be appointed by the Treasury, two by the First Lord of the Admiralty, two by the Secretary of State for War, and the remaining members shall be appointed by the general council. Executive committee.

7. The business and affairs of the Corporation shall be conducted by the executive committee under the control of the general council, who may make general rules for, or give special directions to, the committee, but subject to any such rules or directions the committee shall regulate their own procedure. General rules made by the council may provide for the formation of local committees for purposes connected with the fund (the Functions of the executive committee.

members of which need not be members of the Corporation), and may regulate the functions of those committees, and may provide for other matters incidental to the due conduct of the business of the Corporation.

Treasurer of Corporation.

8. The Paymaster-General shall be the treasurer of the Corporation, and he shall keep such accounts on behalf of the Corporation as the Treasury may from time to time direct.

Deposit of securities in Bank of England.

9. All securities belonging to the Corporation shall be deposited in the Bank of England for the credit and at the disposal of the Corporation, and all interest and dividends accruing on such securities shall from time to time be received by the Bank of England, and shall be carried by them to the cash account of the Paymaster-General in their books.

Proceeds of sale to be carried to account of Paymaster-General.

10. On the sale at any time under the authority of the Corporation of any annuities, stocks, funds or securities standing to their account in the books of the Bank of England, and of any securities belonging to the Corporation deposited with the Bank of England, the proceeds of the sales shall be received by the Bank, and shall be carried by them to the cash account of the Paymaster-General in their books.

Audit of accounts.

11. The accounts of the receipts and expenditure of the Corporation shall be audited in such manner and by such persons as the Treasury may from time to time direct.

Secretary, clerks, &c.

12. The Corporation may employ a secretary, clerks and servants at salaries, and the said salaries and all other proper expenses of the Corporation shall be paid out of the funds at the disposal of the Corporation.

Superannuation fund.

13. The general council may establish a scheme of pensions for persons in the permanent employment of the Corporation, and for that purpose may create a superannuation fund, one half of which shall be furnished by contributions from the beneficiaries, and the other half of which shall be furnished from the funds at the disposal of the Corporation.

Power to receive subscriptions.

14. The Corporation may from time to time solicit and receive contributions from the public and donations of property for the purposes of the Corporation, and may also receive any such sums as may be granted by Parliament.

Annual report of Corporation.

15. The Corporation shall in each year make a report of their proceedings to His Majesty.

SECOND SCHEDULE.

ENACTMENTS REPEALED.

Section 4.

Session and Chapter.	Short Title.	Extent of Repeal.
30 & 31 Vict. c. 98.	The Patriotic Fund Act, 1867 -	The whole Act.
44 & 45 Vict. c. 46.	The Patriotic Fund Act, 1881 -	The whole Act.
49 & 50 Vict. c. 30.	The Patriotic Fund Act, 1886 -	The whole Act.
62 & 63 Vict. c. 45.	The Patriotic Fund Act, 1899 -	The whole Act.